

MANGESH KOYANDE

SRIDHAR RANGAYAN, *61*
Filmmaker (top)

SAAGAR GUPTA, *54*
Writer-director

Sridhar and Saagar have been living together in Mumbai since 1994

'WE STILL CAN'T BE CALLED A FAMILY'

For Sridhar and Saagar, joining the India Network for Sexual Minorities (INFOSEM) in the petition filed at the Supreme Court on April 13 was a step that came from the harsh realisation that after nearly three decades of living together, they still can't take critical decisions when it comes to matters related to each other's health. "If I or he falls ill, we are not able to sign at hospitals for being responsible for each other," says Sridhar. "Saagar has been my partner for so many years, but he can't be called a family member. As of now, he is just a roommate." Even renting a house in Mumbai hasn't been easy for the two, with the general perception being that they are "bachelors" seeking accommodation. Unable to open a joint bank account, the two instead set up a production company, Solaris Pictures, which became a joint venture. Sridhar also runs the popular KASHISH Mumbai International Queer Film Festival.

"Before the 2018 verdict, people said the cultural fabric will be torn. But nothing happened. Similarly, if we get marriage rights, nothing will change for other people"

– SRIDHAR RANGAYAN

It isn't just the need for parental or societal approval that has triggered the spate of petitions in the past four years in two high courts in the country and the apex court, seeking recognition of same-sex marriages in India. The lack of recognition, they claim, amounts to violation of their constitutional rights as Indian citizens and also hampers their ability to navigate what noted jurist Abhishek Manu Singhvi calls "civic, secular irritants", which could be as basic as filing an insurance form or submitting proof of residence. When national sprinting champion Dutee Chand, 27, for instance, took her partner Monalisa Das, 23, to a hospital in Bhubaneswar, she could not sign the required papers as a spouse. "The doctors kept asking me who I was to her," says Chand, who found the courage to come out following the landmark Supreme Court judgment of 2018 that decriminalised sex between consenting adults of the same gender, thereby diluting the colonial-era Section 377 of the Indian Penal Code.

The impetus to the quest for equality by same-sex couples came on November 25, 2022, when the top court took note of two petitions—one filed by Hyderabad-based event manager Supriyo Chakraborty, 33, and his IT professional partner Abhay Dang, 36, and the other by the Delhi-based Parth Phiroze Mehrotra, 36, editor in a publishing house, and Uday Raj Anand, 35, a businessman—seeking that the provisions of the Special Marriage Act (SMA), 1954, also cover LGBTIQA+ couples (Lesbian, Gay, Bisexual, Transgender, Intersex, Queer, Asexual and others). The SMA was introduced to enable couples who could not marry under their respective personal laws to enter a civil or registered union. It made it easier for inter-faith and inter-caste couples outside the scope of social or religious codes.

The current petitions by same-sex couples claim that the SMA, in its present form, violates Articles 14 and 21 of the Constitution, pertaining to the right to equality and right of life and liberty, respectively, as it discriminates between same-sex couples and those of the opposite sex, denying the former legal rights as well as the social recognition and status arising out of marriage. Almost all the petitions argue on the same lines, challenging secular marriage laws such as the SMA and the Foreigners Marriage Act (FMA), 1969, which regulates marriages registered outside India or Indian citizens marrying foreigners, though one petition has also sought amendment to the Hindu Marriage Act, 1955. "Our plea," says Singhvi, who is one of the lawyers arguing the case,